

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MANUEL JIMINEZ

Plaintiff,

**AMENDED VERIFIED
COMPLAINT**

-against-

Index No.: 20973-2020E

Dated Purchased: 1/21/20

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
ESTRELLA ACEVEDO, TAX ID # 966417, PSA8
INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICER JOHN DOE
#1-#5, EACH INDIVIDUALLY AND AS A POLICE
OFFICER, IDENTITIES PRESENTLY UNKOWN,
and SGT. AMANDA SZOT, INDIVIDUALLY AND
AS A POLICE OFFICER,

Defendants.

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The plaintiff, Manuel Jiminez, by his attorneys, Emdin & Russell, LLP
complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, The City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned, the defendant, the City of New York, i.e. "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers and correction officers therein.
3. Upon information and belief, at all times hereinafter mentioned, and on the 10th

day of August, 2019, Police Officer Estrella Acevedo, hereinafter referred to as “Acevedo” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to Public Service Area 8, hereinafter referred to as “PSA 8”, with tax ID # 966417 and at all relevant times set forth below acted in the capacity of a police officer.

4. Upon information and belief at all times hereinafter mentioned and on the 10th day of August, 2019, “Acevedo”, was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

5. Upon information and belief, at all times hereinafter mentioned, and on the 10th day of August, 2019, Police Officers John Doe #1- #5, identities presently unknown but believed to be from PSA *, hereinafter collectively referred to as “Does” were employed as Police Officers by the “City” and/or “NYPD” and at all relevant times set forth below acted in the capacity of a police officer.

6. Upon information and belief at all times hereinafter mentioned and on the 10th day of August, 2019, each Doe was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

7. Upon information and belief, at all times hereinafter mentioned, and on the 10th day of August, 2019, Sgt. Amana Szot, hereinafter referred to as “Szot” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to Public Service Area 8, hereinafter referred to as “PSA 8”, and at all relevant times set forth below acted in the capacity of a police officer.

8. Upon information and belief at all times hereinafter mentioned and on the 10th day of August, 2019, “Szot”, was acting within the scope of his employment as a police officer

and under the direction of the “City” as their agent, servant and/or employee. Upon information and belief on August 10, 2019 Szot was Acevedo’s and/or the Does’ supervisor.

9. Upon information and belief, on August 10, 2019, Acevedo, Szot and the Does, hereinafter collectively referred to as the “officers”, individually and/or collectively, were acting under and required to follow the New York City Police Patrol Guidelines.

10. On the 10th day of August, 2019, plaintiff Manuel Jiminez, hereinafter referred to as “Jiminez” was a resident of the State of New York, County of Bronx.

11. That on August 10 2019, at approximately 11:00 p.m. the plaintiff, Jiminez was lawfully inside the Monroe Projects located in Bronx, New York, at or near the basketball court thereat hereinafter referred to as “the location”.

12. At that time and location, the plaintiff was without cause or reason grabbed the plaintiff from behind by an officer, choked and brought to the ground.

13. The plaintiff suffered from a heart condition and other civilians warned the officers of the plaintiff’s medical condition, nevertheless, officers continued to choke, hold, and strike the plaintiff about the face, ribs, and body, with fists and feet.

14. The plaintiff had committed no crime and was not engaged in any criminal or suspicious activity when he was stopped, grabbed and seized.

15. None of the defendant officers intervened or stopped the use of force and/or the use of excessive force from occurring.

16. The plaintiff was placed in handcuffs and arrested.

17. The plaintiff was lifted and dragged to a police van.

18. The plaintiff, who was visibly injured, was transported to the PSA 8 for arrest

processing.

19. The defendants ignored the plaintiff's request and need for immediate medical attention.

20. The plaintiff was placed in handcuffs and was handcuffed to a bench. The plaintiff continued to request medical attention.

21. The defendants dissuaded the plaintiff from seeking medical attention, advising him that he will be in custody for a longer duration and an officer told him he would then be going to bookings.

22. Upon information and belief an officer instructed Acevedo to write something/anything to get him (plaintiff) out of here.

23. The plaintiff was issued a Criminal Court Appearance Ticket by the defendants falsely charging him with the crimes/violation of disorderly conduct under 240.20 (6) of the penal law. The Ticket was signed by Acevedo

24. Upon information and belief Acevedo falsely filled out and filed a Summons/Criminal Court Appearance Ticket with the purpose of prosecuting the plaintiff for a crime he didn't commit.

25. On October 22, 2019 the plaintiff appeared in Court with an attorney to answer the false criminal charges and all charges were dismissed at that time.

26. According to said complaint/information, signed by Acevedo, he wrote that "as per Sgt. Szot, the above person refused to disperse after given the lawful order to disperse.

27. That as a result of the false charges the plaintiff was caused to spend monies on legal fees to defend himself.

28. That notice of the plaintiff's claim and notice of intention to sue for damages, as well as a Supplemental and Amended Notice of Claim the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City".

29. That a 50(h) hearing was held on December 4, 2019.

30. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

31. That this action is commenced within one year and 90 days after the cause of action arose.

32. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE IMPRISONMENT

33. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "32" with the same force and effect as if more fully and at length set forth herein.

34. That beginning on or about the 10th day of August, 2019, at or about approximately 11:00 p.m. at or near the "location" until the plaintiff's release on August 11, 2019, the defendants, their agents, servants and/or employees detained and imprisoned plaintiff

without any just cause or grounds.

35. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crimes for which he was charged.

36. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

37. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

38. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity, humiliation, loss of work and loss of freedom and the said plaintiff has been otherwise damaged.

39. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE ARREST

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "39" with the same force and effect as if more fully and at

length set forth herein.

41. That beginning on or about the 10th day of August, 2019, at or about approximately 11:00 p.m. at the "location", the plaintiff was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms..

42. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, and based on an illegal stop and search of the plaintiff, when the defendants lacked cause to believe that the plaintiff committed, or was about to commit a crime or was guilty of any crimes.

43. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

44. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize, search, and arrest the plaintiff; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

45. That by reason of the aforesaid false arrest, plaintiff was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

46. That by reason of the aforesaid, the plaintiff has been damaged in an amount

exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR ASSAULT AND BATTERY

47. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "46" with the same force and affect as if more fully and at length set forth herein.

48. The plaintiff was grabbed, choked, seized, punched, kneed, struck, threatened, handcuffed and assaulted and battered by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including defendant officers.

49. That all said contact was committed without the plaintiff's permission or consent.

50. That all said contact was unlawful and without privilege.

51. That the use of force was excessive and without justification.

52. That all contact committed by defendants through their agents, servants, and/or employees, including upon information and belief, defendants "Acevedo" and/or the "Does", was offensive to plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.

53. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

54. That by reason of the aforesaid, the plaintiff, has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR EXCESSIVE FORCE

55. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "54" with the same force and affect as if more fully and at length set forth herein.

56. The plaintiff, who was visibly was infirm was grabbed, choked, seized, punched, kneed, struck, threatened, handcuffed and assaulted and battered by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including defendant officers.

57. That all said contact was committed without the plaintiff's permission or consent.

58. That all said contact was unlawful and without privilege.

59. That the use of force was excessive and beyond all reasonable means necessary to control the plaintiff's person and was without justification and continued unabated even after witnesses informed the defendants of the plaintiff's infirmity.

60. That all contact committed by defendants through their agents, servants, and/or employees, including defendants "Acevedo", and the "Does", was offensive to plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.

61. That the above acts committed by the defendants constituted an unlawful use of excessive force

62. That by reason of the aforesaid, the plaintiff, has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE

63. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "62" with the same force and affect as if more fully and at length set forth herein.

64. That the defendant, "City" was careless and reckless in hiring, retaining, training, assigning, failing to retrain, in monitoring, supervising and promoting as and for its employees, defendants "Acevedo", "Szot" and/or the "Does", in that said employee(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, retraining and retaining the named defendant officers;' and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

65. That upon information and belief the City by and through its agents had received numerous civilian complaints and/or lawsuits, against defendants Acevedo", "Szot" and the "Does" prior to their stop, seizure, search, discourtesy, assault and battery, excessive use of force and malicious prosecution of Jiminez on August 10, 2019.

66. That upon information and belief the City failed to properly train, retrain and/or discipline Acevedo, Szot and /or Does, individually and or collectively , negligently continued to employ said officers, negligently promoted said officers, and/or negligently retained said officers

despite evidence of their police misconduct and continued to assign said officers without proper supervision, training and discipline.

67. That the ‘officers’, the while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his police dates; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other officers; in that they failed to secure prompt and necessary medical attention; and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

68. That the aforesaid occurrence, to wit: assault and battery, false arrest and imprisonment, malicious prosecution, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendants “Acevedo” and/or “Does” without any negligence on the part of the plaintiff contributing thereto.

69. That by reason of the aforesaid, the plaintiff, was imprisoned, lost his freedom, injured and stressed, and he was thereby damaged.

70. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A SIXTH THROUGH TWELFTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY POLICE OFFICER ACEVEDO, SZOT, AND
JOHN DOES #1-#5 IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

71. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "70" with the same force and effect as if more fully and at length set forth herein.

72. That at all times hereinafter mentioned, the defendant "Acevedo" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

73. That at all times hereinafter mentioned, the defendant "Szot" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of her official capacity and her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

74. That at all times hereinafter mentioned, the defendants John Does #1-#5, were each employed by the defendant The City of New York and/or The New York City Police Department and each was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

75. That at all times hereinafter mentioned, the defendant officers, individually and collectively, were acting pursuant to orders and directives from defendant, The City of New

York.

76. That during all times hereinafter mentioned, the defendants “officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

77 That the unlawful and illegal conduct of defendants “officers” deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States

b) The right to equal protection under the law.

c) The right not to be subjected to cruel and unusual punishment

78. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive and sadistic force, seizure of plaintiff’s person, his false arrest and false imprisonment, assault and battery, falsifying evidence, denial of prompt and necessary medical attention, and malicious prosecution the defendant Police “Officers” violated plaintiff’s rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, “the officers” and violated 42

U.S.C. §1983.

79. That as a direct proximate result of “the officers” actions plaintiff was physically and emotionally injured and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

80. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain,.

81. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A THIRTIETH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF AGAINST THE DEFENDANTS FOR MALICIOUS
PROSECUTION

82. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "81" with the same force and effect as if more fully and at length set forth herein.

83. That upon information and belief the defendants filled out false police reports, signed false criminal court complaint and corroborating affidavits against the plaintiff for the purpose of prosecuting him for the charge of attempted assault in the third degree, resisting arrest and harassment.

84. That upon information and belief the defendants took such actions, knowingly and with a malicious disregard for the truth, and did so with the intent to cover up the illegal arrest of

the plaintiff and the injuries that he sustained at the hands of the police.

85 The plaintiff was at all times innocent of any crime charged.

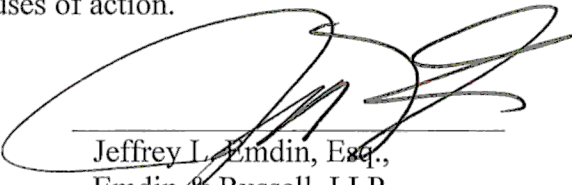
86 That due to the malicious prosecution the plaintiff was caused to spend money to obtain legal counsel and attend and appear at Bronx County Criminal Court.

87 On October 22, 2019 all criminal charges were dismissed against the plaintiff.

88 That by reason of the aforesaid malicious prosecution, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the sixth through twelfth causes of action) and such other and further relief as to the Court seems just and proper on the First through the Thirteenth causes of action.

DATED: New York, New York
January 28, 2019



Jeffrey L. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiff
330 West 38th Street Ste 302
New York, New York 10018
(212) 265-1350

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

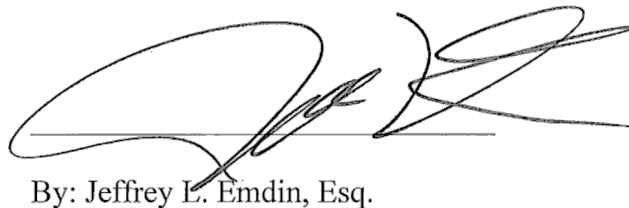
That I am an attorney associated with the law firm of Jeffrey L. Emdin, Esq., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Amended Summons and Amended Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
January 28, 2019



By: Jeffrey L. Emdin, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX
Index No. 20973/2020E

MANUEL JIMINEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ACEVEDO, ESTRELLA, TAX #966417, Sgt Szot, AND
OTHER OFFICERS IDENTITIES UNKNOWN

Defendants.

AMENDED COMPLAINT

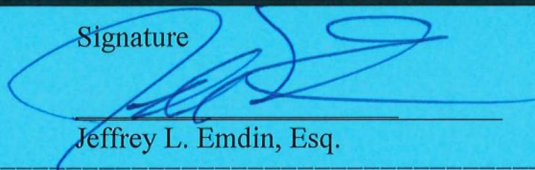
Law Office of Jeffrey L. Emdin
Attorney for the Plaintiff
330 West 38th Street, Suite 302
New York, New York 10018
(212) 265-1350

To: City of New York
C/o Corporation Counsel,
100 Church Street
New York, New York 10007

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: January 29, 2020

Signature



Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on